

Amendment No. 1 to HB2041

Farmer
Signature of Sponsor

AMEND Senate Bill No. 1993*

House Bill No. 2041

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 29, Chapter 18, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Civil process related to an eviction proceeding" includes an eviction notice, a judgment of possession, and a writ of possession; and

(2) "Participant in an eviction process" means a private entity or person who is serving or executing civil process related to an eviction proceeding or a person affiliated with a private entity or person who is serving or executing civil process related to an eviction proceeding, and does not include a law enforcement officer serving or executing civil process related to an eviction proceeding while engaged in the law enforcement officer's official duties.

(b) Notwithstanding title 39, chapter 13, part 6 to the contrary and unless authorized by a court order, a participant in an eviction process is prohibited from publishing, transmitting, or broadcasting, in real-time or near real-time, in a manner that is accessible to the public, any video of the service or execution of civil process related to an eviction proceeding upon an individual without the express written permission of the individual if the publishing, transmitting, or broadcasting is for any purpose other than legal documentation of the service or execution of the civil process.

(c)

(1) An individual who is a victim of a violation of subsection (b) has a private right of action against the person who violates subsection (b).

(2) A court may award a victim of a violation of subsection (b) who prevails in an action under this subsection (c):

(A) A minimum of twenty-five thousand dollars (\$25,000) in statutory damages per intentional violation of subsection (b);

(B) Actual damages;

(C) Punitive damages, pursuant to § 29-39-104;

(D) Other forms of equitable relief; and

(E) Reasonable costs and attorney fees.

(d) The prohibition in subsection (b) does not apply to a participant in an eviction process who publishes, transmits, or broadcasts, in real-time or near real-time, a video of the service or execution of civil process related to an eviction proceeding to the following, or the following's designees:

(1) The landlord in the eviction proceeding;

(2) The property owner in the eviction proceeding;

(3) Counsel for the landlord or property owner;

(4) A law enforcement agency;

(5) The court with jurisdiction over the eviction proceeding; or

(6) The property management company for the property in the eviction proceeding.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.